

SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Present:

Mr. Justice Yahya Afridi, CJ

Mr. Justice Shakeel Ahmad

Civil Appeal No.328 of 2018 with CMA No. 979-P of 2017

(Against the judgment dated 27.09.2017, passed by the Peshawar High Court, Peshawar in CR No. 248-P of 2014)

Province of Khyber Pakhtunkhwa through ...Appellant(s)
the Secretary Forest/ Environment
Department, Peshawar & others

Versus

Sher Muhammad & others ...Respondents

For the Appellant(s) : Mr. Zahid Yousaf Qureshi, AOR.
alongwith Abdul Sattar SDFO.

For Respondent(s) : Mr. Abdul Sattar Khan, ASC

Date of Hearing : 14.05.2026

JUDGMENT

Shakeel Ahmad, J.- This appeal, by leave of the Court, challenges the judgment dated 27.09.2017 (***“impugned judgment”***), passed by the Peshawar High Court, Peshawar (***“High Court”***), whereby the Civil Revision Petition instituted by the appellants against the judgment and decree dated 03.06.2013, of the Additional District Judge-II, Peshawar, decreeing the suit of the respondents, was partially accepted.

2. Precisely, the respondents instituted a suit for declaration and permanent injunction against the appellants, challenging therein the legal validity and defensibility of letter Nos. 2653, 2655, 2657 and 2659 dated 06.05.2010 and letter Nos. 2716, 2720, 2722, and 2724 dated 10.05.2010, issued by the appellant No.4 to appellant No. 3, whereby directions were issued for cancellation of the lots auctioned in favour of the respondents. It was pleaded that the respondents were the lawful allottees of 563 out of 607 number of dead/ dry Trees vide Lot No. 1/Divi KRC Dagbasood (B/S), Lot No. 2-Divil KRC Badber, Lot No. 3/Divil left canal Zangali, Lot No. 4/Divil GFC Urmar Beat, Lot No. 5/Divil Pabbi Cherat Road, Lot No. 6/Divil Urmar Beat, Lot No. 7/Divil GFC Jaloza Beat, Lot No. 8/Divil GFC Regi Beat, Lot No. 9/Divil Bara Beat, Lot No.

10/Divil Dalazak Road, Lot No. 11/Divil KRC Chamkani Beat, Lot No. 12/Divil Kurvi Branch, Lot No. 13/Divil Hazarkhwani Beat and Lot No. 31/ Divil Charsadda duly auctioned on 15.01.2008 and 15.04.2008. Upon appearance before the trial Court, the appellants contested the suit by filing written statement, raising therein various legal and factual objections. Following a full-fledged trial, the suit was dismissed vide judgment and decree dated 02.03.2013. The respondents preferred an appeal, which was allowed vide judgment and decree dated 13.06.2013. Aggrieved thereby, the appellants filed Civil Revision Petition before the High Court, which was partially accepted through the impugned judgment. Hence, the present appeal.

3. Heard both sides and record gone through.

4. Before advertng to the merits of the controversy and the points urged before us, it would be advantageous to reproduce the relevant portion of the impugned judgment passed by the High Court, which reads as under:

“Without dilating upon other merits of the case, when the petitioners themselves had failed to comply with the terms and conditions of auction, then for their omission respondents could not be held responsible, however, keeping in view laches and silence of respondents for a considerable time till institution of suit in 2010, the revision petition is partially accepted and the impugned judgment is modified to the extent that respondents shall deposit all the remaining amount of bid offered by them and accepted by the petitioners alongwith the required fine in accordance with law within a month, positively, after receipt of attested copy of the judgment of this Court and petitioners” department shall execute the required contract and thereafter petitioners shall harvest the auctioned trees within further one month’s time positively”

5. No doubt, the High Court, while exercising revisional jurisdiction under Section 115 CPC, may interfere where the subordinate Courts have misread evidence or acted in disregard of settled principles of law. However, it cannot travel beyond the pleadings so as to grant an entirely new or inconsistent relief, which was neither claimed nor founded in

the plaint. The present case, as instituted, was purely declaratory in nature, challenging the legality of cancellation of the auction, whereas the relief of specific performance was neither sought nor could be implied from the pleadings. In such circumstances, the Court could not convert the nature of the suit into one for specific performance, particularly where the case was founded on alleged failure of the respondents to deposit the remaining bid amount within the stipulated period. Consequently, the grant of such relief, outside the pleadings, resulted in manifest prejudice and amounted to a denial of a fair opportunity to contest the real controversy between the parties.

6. Order VII Rule 7 CPC, in substance, provides that every plaint shall specifically state the relief claimed, but empowers the Court to grant such general or other relief as the plaintiff may be found entitled to, notwithstanding the absence of a specific prayer to that effect. This principle has come to be known as the doctrine of “moulding of relief”, which enables a Court, in appropriate cases, to tailor or adjust the relief sought in light of the pleadings, the evidence brought on record, and the facts ultimately established. The object of the doctrine is to ensure that substantial justice is not defeated by technical deficiencies in the framing of prayers or by subsequent developments affecting the nature of the relief originally sought. Nevertheless, the power to mould relief is neither unbridled nor capable of being exercised as a matter of course. It is an exception to the general rule that parties are bound by their pleadings and that relief must correspond to the case set up by them. Accordingly, any moulded relief must flow from the pleadings and proved facts, remain consistent with the nature of the proceedings, and must not take the opposite party by surprise or cause prejudice by depriving it of an opportunity to meet the case sought to be made out. However, the concept of moulding of relief does not permit the Court to introduce an entirely new cause of action or to substitute one category of suit for another. It only permits the Court to adjust or shape relief flowing from the pleadings suitably and proved facts so as to do complete justice within the framework of the case as presented by the parties.

Permissible moulding of relief may include, *interalia*, granting possession where the facts justify such relief, awarding a lesser or alternative relief, granting consequential relief, adjusting equities in light of subsequent events, or correcting technical defects in the formulation of prayers. It does not, however, extend to converting a declaratory suit into one for specific performance, granting ownership where only an injunction was sought and no title was pleaded, enforcing a contract where such relief was never claimed, or granting relief wholly inconsistent with the pleadings. The settled principle remains that relief not founded on the pleadings cannot be granted; parties are bound by their pleadings, evidence beyond the pleadings is irrelevant, and the Court cannot travel beyond the pleadings to construct a new case for either party. The doctrine is intended to advance justice within the framework of the dispute before the Court and not to create an altogether new case or confer a substantive relief wholly alien to the pleadings.

7. A suit for specific performance stands on an even stricter footing, being an equitable and discretionary relief under the Specific Relief Act, 1877. A plaintiff seeking such relief must specifically plead and prove readiness and willingness to perform his or her contractual obligations, the existence of a valid and enforceable contract, compliance with essential terms, and, where relevant, proper Court fee valuation. Where a party fails to deposit the remaining bid amount within the stipulated period, as alleged, and confines the relief to declaration and injunction on the plea that cancellation was illegal, the Court cannot, in the absence of proper pleadings, convert the suit into one for specific performance. Any such conversion would also defeat the equitable character of the remedy, particularly where essential conditions of contract are alleged to have been breached, unless foundational pleas such as waiver, extension of time, or prevention by the opposite party are specifically pleaded and proved. Therefore, a declaratory suit challenging the cancellation of a contract and a suit seeking enforcement of the contract are thus legally distinct proceedings. The former is confined to examining the legality

and validity of the impugned act, whereas the latter seeks affirmative enforcement of reciprocal obligations arising from a concluded and enforceable contract. One cannot ordinarily be substituted for the other through judicial improvisation under Order VII Rule 7 CPC, which, while permitting moulding of relief, does not authorise transformation of the nature of the suit itself.

8. Moreover, a Court exercising revisional jurisdiction under Section 115 CPC cannot assume the role of a trial Court or appellate Court so as to grant substantive equitable relief in the absence of pleadings and framed issues. The revisional jurisdiction is confined to correcting jurisdictional errors, material irregularities, or illegalities in the exercise of jurisdiction. In the present case, the High Court, while setting aside the judgment and decree of the appellate Court, proceeded to decree specific performance, despite the fact that such relief was neither pleaded nor prayed for. Such an exercise is beyond the permissible scope of revisional jurisdiction and suffers from jurisdictional infirmity, particularly in light of settled principles governing pleadings, Court fees, nature of relief, and the right of parties to a fair opportunity to contest the real controversy. The expression "moulding of relief" therefore signifies tailoring or adjusting relief already claimed on the basis of existing pleadings and evidence, and not the creation of an entirely new relief or transformation of the very nature of the suit.

9. The reliance placed by learned counsel for the respondents on *Syed Phool Badshah v. ADBP through Manager, Peshawar Branch* (2012 SCMR 1688) is misconceived, as the controversy therein arose in a materially different factual and legal context relating to recovery proceedings under the Financial Institutions (Recovery of Finances) Ordinance, 2001. In the said case, the Court observed that under Order VII Rule 7 CPC, ancillary or effective relief may be granted even if not specifically prayed for, provided it flows from the pleadings and the material on record. However, the judgment does not lay down any principle permitting grant of relief beyond pleadings or on facts not disclosed therein. Rather, it reaffirms that no relief

can be granted on the basis of matters outside the pleadings and that the Court cannot grant relief which is not the subject matter of the suit. Properly understood, the said precedent in fact reinforces the settled limitation that the doctrine of moulding relief operates only within the confines of the pleadings and cannot be invoked to alter the very nature of the proceedings.

10. Even on merits, the respondents have no case, as they have failed to deposit the balance sale consideration in accordance with the agreed terms and conditions of the auction pertaining to Lot Nos. 02/Divl: (2007-08), 03/Divl: (2007-08), 04/Divl: (2007-08), 05/Divl: (2007-08), 06/Divl: (2007-08), 08/Divl: (2007-08), 09/Divl: (2007-08), 12/Divl: (2007-08) and 31/Divl: (2007-08), within the stipulated period of seven days thereby committed a wilful default. Consequently, in law and on facts, the alleged agreement neither attained enforceability nor could it be lawfully concluded or acted upon.

11. For the reasons stated above, we are of the considered view that the High Court, while exercising revisional jurisdiction, has fallen into error by converting the relief into one for specific performance of the contract, resulting in a manifest miscarriage of justice. We further hold that, in view of the respondents' default in payment of the remaining sale consideration within the stipulated period against the aforesaid Lots, they were not entitled to seek a decree of declaration and permanent injunction against the appellants. Consequently, this appeal is allowed. The impugned judgments and decrees of the learned Appellate Court and the High Court are set aside, and that of the Trial Court is restored. No order as to costs. The listed CMA also stand disposed of.